

STATE OF NEW YORK

10104--A

IN ASSEMBLY

February 2, 2026

Introduced by M. of A. BERGER -- read once and referred to the Committee on Corporations, Authorities and Commissions -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the public authorities law, in relation to requiring notices of liability issued for nonpayment of tolls to be uniform in form and content and contain specific information

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Subdivision 7 of section 2985 of the public authorities law
2 is amended by adding a new paragraph (e) to read as follows:

3 (e) A notice of liability issued pursuant to this section shall be
4 uniform in form and content across all public authorities authorized to
5 issue such notices pursuant to this section and shall contain a clear
6 and conspicuous statement of the monetary penalties applicable to the
7 violation charged, including the penalty authorized for a first
8 violation, a second violation within eighteen months, and a third or
9 subsequent violation within eighteen months, as set forth in subdivision
10 five of this section, and shall further specify the rates, fees, or
11 charges applicable to nonpayment of tolls as prescribed by the public
12 authority issuing such notice, and clearly identify the public authority
13 authorized to impose such penalties, rates, fees, or charges. Where an
14 automatic payment method has been disconnected or an electronic toll
15 collection account has been terminated, the public authority shall
16 provide written notice of such disconnection or termination to the
17 account holder prior to, or contemporaneously with, the issuance of any
18 notice of liability. Failure by a public authority to provide such
19 notice shall render null and void any surcharges, fees, or additional
20 penalties accruing after the date of such disconnection or termination.

21 § 2. This act shall take effect on the one hundred twentieth day after
22 it shall have become a law.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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